

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings  
Hon. Stephanie L. Jamieson  
Courtroom 8

627 W. 21<sup>st</sup> Street, Merced

Wednesday, August 12, 2026  
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

| Case No. | Title / Description |
|----------|---------------------|
|----------|---------------------|

|            |                                                                                                   |
|------------|---------------------------------------------------------------------------------------------------|
| 21CV-03779 | The Village of Los Banos, Unit No. 2 Owners Association vs K. Hovnanian Communities, Inc., et al. |
|------------|---------------------------------------------------------------------------------------------------|

Motion for Summary Adjudication

**K. Hovnanian Defendants' motion for summary adjudication is GRANTED.**

**Defendants' requests for judicial notice are GRANTED.**

**Plaintiff's objections to evidence in opposition are OVERRULED.**

**Defendants filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that establish Plaintiff's claims relating to the roads, perimeter walls, sewer and stormwater lift stations, clubhouse, and tennis court are time barred by the applicable 10-year statute of repose.**

**Specifically, Defendants' UMFs 7, 8, 10, 11, 13, 14, 15, 18 and 20, establish the roads, perimeter walls, sewer and stormwater lift stations, clubhouse, and tennis court were completed, and that Defendants' did not possess or control those areas, more than ten**

**(10) years prior to Plaintiff's lawsuit; see evidence cited in support of UMFs 7, 8, 10, 11, 13, 14, 15, 18, 20, and Reply Exhibit 9 regarding these facts.**

**This shifts the burden to Plaintiff to show the existence of one or more triable issues of material fact. (Code Civ. Proc., § 437c, subd. (p)(2). Here, Plaintiff's stated authority and evidence in opposition does not raise a triable issue of material fact. Therefore, Defendants' motion for summary adjudication is granted.**

**The motion for summary adjudication as to Defendant JELD-WEN is DENIED WITHOUT PREJUDICE. Defendant JELD-WEN failed to file, as required, a separate statement supported by admissible evidence setting forth the specific facts supporting its entitlement to summary adjudication.**

**The motion for summary adjudication as to Defendant J.R. Pierce Plumbing is DENIED WITHOUT PREJUDICE. Defendant Pierce Plumbing failed to file, as required, a separate statement supported by admissible evidence setting forth the specific facts supporting its entitlement to summary adjudication.**

**Defendant K. Hovnanian is directed to submit a written order to the court consistent with this ruling and in compliance with California Rules of Court, rule 3.1312.**

---

22CV-04217                      Arcelia Ochoa vs Marcos Renteria AG Services, Inc., et al.

Status Review of Settlement

**CONTINUED to October 6, 2026, at 8:15 a.m. in Courtroom 8, for Plaintiff to file a proper declaration and request for entry of judgment based on Defendant's alleged non-compliance with the settlement agreement.**

**The statement filed August 5, 2026, does not contain a declaration regarding non-compliance. Although Plaintiff asserts that an abstract of judgment was mailed to the court on July 27, 2026, no documents have been lodged as of August 10, 2026.**

---

23CV-00355                      Elizabeth De La Garza vs City of Merced, et al.

Motion for Summary Judgment

**Defendant AJG's motion for summary judgment is GRANTED.**

**Defendant's request for judicial notice is GRANTED.**

**Upon consideration of all the evidence set forth in the moving papers the court finds that there is no triable issue of material fact and Defendant AJG is entitled to judgment as a matter of law.**

**Defendant filed a separate statement of undisputed material facts, supported by admissible evidence, containing undisputed material facts that negate the element of duty and establish the alleged condition was trivial.**